

ELIZABETH II



1978 CHAPTER iv

An Act to confirm a Provisional Order under the Private
Legislation Procedure (Scotland) Act 1936, relating to
Orkney Islands Council. [25th May 1978]

WHEREAS the Provisional Order set forth in the schedule
hereunto annexed has been made by the Secretary of
State under the provisions of the Private Legislation
Procedure (Scotland) Act 1936, and it is requisite that the said 1936 c. 52.
Order should be confirmed by Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty,
by and with the advice and consent of the Lords Spiritual and
Temporal, and Commons, in this present Parliament assembled,
and by the authority of the same, as follows:—

1. The Provisional Order contained in the schedule hereunto Confirmation
annexed is hereby confirmed. of Order in
schedule.
2. This Act may be cited as the Orkney Islands Council Order Short title.
Confirmation Act 1978.

SCHEDULE

ORKNEY ISLANDS COUNCIL

Provisional Order to extend the provisions of the Orkney County Council Act 1974 to certain piers and harbours in the Orkney Islands Area; to confer further powers on the Orkney Islands Council in relation to harbour matters; to repeal certain enactments relating to piers and harbours in the said Area; and for other purposes.

Whereas—

1974 c. xxx.

(1) By the Orkney County Council Act 1974 the county council of the county of Orkney were given certain jurisdiction and powers in relation to the areas of Scapa Flow and Wide Firth, Shapinsay Sound as defined in that Act, and by virtue of the Local Government (Scotland) Act 1973 the said jurisdiction and powers are now exercisable by the Orkney Islands Council (hereinafter called “the Council”):

1973 c. 65.

1937 c. 28.

(2) Partly by the operation of section 154 of the said Act of 1973, and partly by the transfer from the owners of marine works under section 1 of the Harbours, Piers and Ferries (Scotland) Act 1937, the Council have succeeded to the property, and to the statutory and other rights, of a number of piers and harbours in the Orkney Islands Area, and the various local Acts and Orders relating to those piers and harbours now have effect as if the Council had been the undertakers severally referred to in those Acts and Orders:

(3) It is expedient for the more efficient administration of the said piers and harbours that the provisions of the Orkney County Council Act 1974 be applied to them and that the other local Acts and Orders hereinbefore mentioned be repealed:

(4) It is expedient that the use of tugs within the harbour areas under the jurisdiction of the Council be controlled by a system of licensing, and that the other provisions of this Order be enacted:

1936 c. 52.

(5) The purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1936:

Now, therefore, in pursuance of the powers contained in the last-mentioned Act, the Secretary of State orders as follows:—

Short title
and
commencement.

1. This Order may be cited as the Orkney Islands Council Order 1978, and shall come into operation on the expiration of one calendar month after the commencement of the Act confirming it.

*Orkney Islands Council
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2. Subject to the following provisions of this section, and except Interpretation. where the context otherwise requires, expressions in this Order which are defined in the 1974 Act have the same respective meanings, and in this Order:—

“ the 1974 Act ” means the Orkney County Council Act 1974; 1974 c. xxx.

“ the Council ” means the Orkney Islands Council.

3.—(1) The definition of “ harbour area ” in section 3 (1) of the Application 1974 Act is amended by substituting for the words “ the Scapa Flow of 1974 Act to area or the Wide Firth, Shapinsay Sound area ” the words “ the areas ”, additional and by substituting for the word “ either ” the word “ any ”, harbours, etc.

(2) The Schedule to the 1974 Act is amended by adding thereto the particulars set out in Schedule 1 to this Order.

(3) After the coming into operation of this Order, references in any byelaws made under the Explosives Act 1875, the Petroleum 1875 c. 17. (Consolidation) Act 1928 or the 1974 Act to harbour areas shall be 1928 c. 32. construed in accordance with the amendments made by the foregoing provisions of this section.

4.—(1) The Council may from time to time license free of charge Use of tugs. such tugs (to be specified in the licence) for such periods and on such terms and conditions as the Council think fit.

(2) It shall not be lawful for any person, except in an emergency, to operate a vessel exceeding 5 tons gross for fee or reward for the purpose of moving or controlling the movement of any other vessel within a harbour area except under and in accordance with the terms and conditions of a licence granted under subsection (1) above.

(3) Any person who contravenes the provisions of this section shall be guilty of an offence and liable on summary conviction to a fine not exceeding £100.

5. Section 3 (1) of the 1974 Act is amended, in the definition of Tidal works. “ tidal work ”, by inserting next after the word “ Act ” the words “ or of any enactment repealed by the Orkney Islands Council Order 1978 ”.

6. Section 3 (1) of the 1974 Act and the Orkney Harbour Areas Dangerous Byelaws 1977 are amended by substituting for the definition of goods. “ dangerous goods ” the following definition:—

“ “ dangerous goods ” means dangerous goods as defined in section 446 of the Merchant Shipping Act 1894 and any 1894 c. 60. goods declared by rules under section 23 of the Merchant Shipping (Safety Convention) Act 1949 to be dangerous in 1949 c. 43. their nature.”

7. Section 46 (3) of the 1974 Act is amended by substituting for Penalties for the words “ a daily fine of fifty pounds ” the words “ a daily fine not offences against exceeding fifty pounds ”. byelaws.

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Exemption
from
charges.

8. Section 64 of the 1974 Act is amended by adding at the end of subsection (1) thereof a new paragraph, as follows:—

“(e) any vessel belonging to or used by the lifeboat service whilst employed in or in connection with the functions of that service.”

Repeals.

9. The enactments specified in the first column of Schedule 2 to this Order are repealed to the extent specified in respect of each of them in the second column of that Schedule.

SCHEDULES

SCHEDULE 1

Section 3 (2).

ADDED PARTICULARS

WHITEHALL

That part of Papa Sound within a distance of 1 kilometre in any direction from the landward end of Whitehall Pier (latitude 59° 08' 32" north, longitude 02° 35' 44" west).

OTHER HARBOURS

In relation to each of the harbours designated in the first column of the following table, the area of tidal waters within 1 kilometre in any direction from the landward end of the pier or jetty specified in relation to that harbour in the second and third columns of the table.

TABLE

(1) <i>Harbour</i>	(2) <i>Pier or Jetty</i>	(3) <i>Latitude and Longitude of Landward End</i>
North Ronaldsay ...	North Ronaldsay Pier ...	59° 21' 18" N. 02° 26' 20" W.
Papa Westray ...	Papa Westray Pier ...	59° 19' 37" N. 02° 53' 13" W.
Pierowall ...	Gill Pier ...	59° 19' 27" N. 02° 58' 19" W.
Kettletoft ...	Kettletoft Pier ...	59° 13' 56" N. 02° 35' 54" W.
Backaland ...	Backaland Pier, Eday ...	59° 09' 21" N. 02° 44' 39" W.
Trumland ...	Trumland Pier, Rousay ...	59° 07' 50" N. 02° 59' 10" W.
Egilsay ...	Egilsay Pier ...	59° 09' 22" N. 02° 56' 26" W.
Wyre ...	Wyre Pier ...	59° 07' 30" N. 02° 58' 14" W.
Tingwall ...	Tingwall Jetty ...	59° 05' 22" N. 03° 02' 29" W.

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Section 9.

SCHEDULE 2

ENACTMENTS REPEALED

(1) <i>Enactment</i>	(2) <i>Extent of repeal</i>
1859 c.iv(22Vict.) The Kirkwall Harbour Act 1859	The whole Act.
1872 c. lxxviii. The Gill Pier Order 1872	The whole Order.
1872 c. lxxvii. The Orkney Piers and Harbours Act 1872 ...	The whole Act.
1879 c. lv. The Whitehall (Stronsay) Pier and Harbour Order 1879	The whole Order.
1882 c. clxviii. The Kettletoft Pier Order 1882	The whole Order.
1887 c. clxii. The Orkney Harbours Act 1887	The whole Act.
1897 c. cxxxi. The Stromness Harbour Act 1897	The whole Act.
S.I. 1954/1083. The Stromness Harbour Order 1954	The whole Order.
S.I. 1970/505. The Backaland Pier, Eday, Empowerment Order 1969	The whole Order.
1972 c. xx. The Stromness (Vehicle Ferry Terminal) Pier &c. Order Confirmation Act 1972	The whole Act.
S.I. 1976/578. The Dockyard Port of Scapa Flow (Revocation) Order 1976	The whole Order.
1974 c. xxx. The Orkney County Council Act 1974	Paragraph (b) of section 80.

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